
SERVICE AGREEMENT

Health, Wellness and Membership Services

B E T W E E N

RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED

Office No. G-0005, A-1, Ground Floor, Sector 59, Noida, Gautam Buddha Nagar, Uttar Pradesh – 201301

A N D

THE CUSTOMER

as named in Schedule 1 (Key Facts and Transaction Record)

Agreement No.: {AgreementNumber}

Version 2.0 | For legal vetting before use

Executed at: Digitally at Gautam Buddha Nagar (Noida), Uttar Pradesh, 201301

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THIS SERVICE AGREEMENT is made on the day and at the place set out in the execution block hereto (the "Effective Date")

BETWEEN:

(1) The FIRST PART, being RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED, having its registered office at Office No. G-0005, A-1, Ground Floor, Sector 59, Noida, Gautam Buddha Nagar, Uttar Pradesh – 201301, India (hereafter referred to as the "Service Provider" or the "Company", which expression shall, as to their meaning, include their successors in interest and their permitted assigns);

AND

(2) MR./MS. {CustomerName}, aged {CustomerAge} years (declared to be eighteen (18) years of age or above), holding [ID type] bearing last four digits {CustomerAadharLastFour}, residing at {FullAddressCustomer}, *registered mobile number {CustomerPhone}*, registered e-mail address {CustomerMail} (hereinafter referred to as the "Customer", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include the Customer's legal heirs and permitted representatives, as the case may be) of the SECOND PART.

The Service Provider and the Customer are hereinafter individually referred to as a "Party" and collectively as the "Parties".

RECITALS:

WHEREAS:

A. The Service Provider is a provider and/or facilitator of one or more healthcare, health and wellness related services, plans, memberships, benefits, assistance and other allied services and/or offerings or any independent third-party providers with which the Service Provider has a business relationship to provide and/or facilitate services.

B. The Services provided by the Service Provider are NOT health insurance policies, nor are they intended to be a substitute for a health insurance policy, except in the cases where an insurance policy is specifically included within a Service and is issued by an IRDAI-registered separately identified insurance company as set out in the relevant Plan Document.

C. The Customer has, after having been given the opportunity to read the features, price, validity, exclusions and cancellation terms and the privacy notice of the plan in a language understood by the Customer, voluntarily approached the Service Provider to subscribe, purchase and use the Services set forth in the relevant Plan Document.

D. The Parties wish to put in writing the terms and conditions under which the Customer buys, subscribes and uses the Services, how the Customer's personal and health data will be handled, how payments will be made, and how any grievance will be handled and redressed.

E. The Customer intends to use this Agreement by electronic or digital signature as provided by the Information Technology Act, 2000 and the Parties agree how the execution of this Agreement is to be done electronically or digitally as set forth in Clause 4 herein.

WHEREAS, the Parties are desiring to be bound by these Presents, according to the laws of the land, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties have agreed as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

For the purposes of this Agreement, the following terms shall be given the meanings listed below:

1.1.1 'Applicable Law' shall mean all statutes and rules, regulations, guidelines, notifications, directions and orders of any governmental, statutory or regulatory authority applicable in India from time to time including without limitation the Consumer Protection Act, 2019, the Information Technology Act, 2000 and the rules framed thereunder including the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, the Bharatiya Nyaya Sanhita, 2023, the Bharatiya Sakshya Adhiniyam, 2023, the Telemedicine Practice Guidelines, 2020, the Consumer Protection (E-Commerce) Rules, 2020 and the Guidelines for Prevention and Regulation of Dark Patterns, 2023.

1.1.2 "Cooling-off Period" shall mean what is defined in Clause 3.1.

1.1.3 "Certifying Authority" means Certifying Authority as licensed under the Information Technology Act, 2000 and includes an Electronic Signature Service Provider ("ESP") empaneled by Controller of Certifying Authorities for e-Sign services using Aadhaar.

1.1.4 "Digital Signature": A digital signature attached by Customer or the authorized signatory of the Service Provider in accordance with the guidelines set out in the Information Technology Act, 2000 using a Digital Signature Certificate ("DSC") issued by a Certifying Authority or an Aadhaar based e-Sign through an ESP.

1.1.5 "Electronic Signature" shall mean any electronic authentication technique accepted as an electronic signature under the Information Technology Act, 2000, such as OTP based click wrap, Aadhaar based e-Sign and Digital Signature attached using a Digital Signature Certificate.

1.1.6 "Grievance Officer" shall have the meaning defined in Clause 14.

1.1.7 "Health Data" shall mean information concerning the physical, physiological or mental health condition, medical history, medical records, medical reports, test results, prescriptions or treatment of the Customer or any beneficiary named by the Customer, which is "sensitive personal data or information" under the SPDI Rules and, on and from its commencement, personal data under the DPDP Act.

1.1.8 "Official Payment Channels" shall mean as defined in Clause 8.1.

1.1.9 "Partner Provider" shall mean any independent healthcare practitioner, hospital, clinic, diagnostic center, laboratory, pharmacy, insurance company, insurance broker, telemedicine provider, network provider, technology service provider or other third party with whom the Service Provider provides or facilitates the provision of the Services. To the extent that these Terms and Conditions refer to the term "Service Provider", it shall mean only the Company and not any Partner Provider.

1.1.10 "Personal Data" means any data about an individual who is identifiable by or in connection with such data, including Health Data.

1.1.11 "Plan Document" shall mean the Plan Description, Membership Document, Service Description, Order Confirmation, Tax Invoices and any Annexures or Key-fact statement sent to or provided to the Customer at and/or before the time of purchase of the Service, which outlines the specific benefits, eligibility, validity, exclusions, limitations, price, and Partner Providers that apply to the Service purchased by the Customer.

1.1.12 "Services" means the healthcare, health, wellness, membership, assistance or allied service(s) selected and purchased by the Customer from time to time, as described in the applicable Plan Document.

1.2 Interpretation

1.2.1 References to a statute or statutory provision include references to any modification, re-enactment or subordinate legislation made under a statute.

1.2.2 The use of headings and sub-headings is for convenience only and shall not impact on the construction of this Agreement.

1.2.3 The terms "include" or "including" and "in particular," shall be interpreted to mean illustrative and not restrictive of the meaning of the preceding terms.

1.2.4 The term "Clause" and "Schedule" shall mean by reference to this Agreement, "Clause" and "Schedule" of, respectively.

1.2.5 Singular words that import the plural import the plural, and plural words that import a singular import a singular; and words that import one gender import all genders.

2. SCOPE OF SERVICES

2.1 The Service Provider shall offer and/or make available the Services selected by the Customer, as per the terms of this Agreement, the Applicable Plan Document as per payment /plan and validity and Applicable Law.

2.2 The nature, scope, features, benefits, eligibility criteria, validity, availability, exclusions and limitations of any Service shall be as outlined in the Plan Document applicable to that Service. The Plan Document is attached as part of this Agreement and is hereby incorporated by reference.

2.3 The Services may be provided by the Service Provider directly or through Partner Providers or together customized as per requirements, evolved need, trend and regulatory changes. Where a Service is delivered through a Partner Provider, the professional, clinical, operational or regulatory aspects of that Service which are delivered by the Partner Provider (including without limitation, any consultation, diagnosis, treatment, medical advice, diagnostic test, hospitalization, dispensation of medicines and/or issuance of an insurance policy) shall be carried out within the independent competence of the Partner Provider concerned. If this occurs, the Service Provider's responsibility is to facilitate/assisted access to the Partner Provider as outlined in the Plan Document.

2.4 The Customer shall provide accurate, verifiable, complete and current information, documents, authorizations and cooperation as reasonably requested to provide or facilitate provision of the Services. The Service Provider will have the right to rely on the information provided by the Customer in good faith.

2.5 At any time the Service Provider may modify, add or replace certain Services, plans, memberships and/or offerings, but not to the detriment of a Service that the Customer has already secured without the Customer's written consent, unless the Service Provider deems it necessary to comply with the Applicable Law.

2.6 The Service provider agree and offer to the customer or any of the authorized representative of customer/'s to visit the office of the service provider with limited accesses to verify the presence and set up of the service provider at the cost and arrangement of the customer only and not at the obligation of service provider. With this clause the customer is not entitled to/ including but not limited to inspect, audit, access to proprietary information, the trade specific information and the data of other customers. Customer can visit any time before choosing to buy a subscription or within 7 working days of purchase.

3. FEES, COOLING-OFF AND NO REFUND AFTER ACTIVATION

3.1 Cooling-off and Cancellation before Activation shall be limited to (7) Seven Days

3.1.1 The Customer may cancel the Service within Seven (7) Days from the payment, provided if the Service has not been activated, used or any benefit from the same received (the "Cooling-off Period") from the date of payment. If cancelled as per eligibility of cooling off period, the Service Provider will refund the amount paid to the Customer within seven (7) working days of the cancellation to the same payment method used for the payment, less any non-recoverable amount already paid to a Partner Provider and communicated to the Customer at the time of purchase.

3.1.2. Once the Cooling-off Period (seven (7) days) has expired or a benefit has been used or activated, the provisions of Clause 3.3 (No Refund After Activation) will apply, except as modified by Clause 3.4.

3.1.3 All refunds will be made only to the original source of payment. The Service Provider will not make any refund in cash or to any third party's mobile wallet, personal UPI ID or any account.

3.2 Fees and Mode of Payment

3.2.1 The fees to be paid for the Services shall be as communicated to the Customer in the Plan Document, order confirmation and/or tax invoice at the time of purchase / subscription. Any tax and statutory levies shall be payable in addition and shall be stated separately in the tax invoice.

3.2.2 The total amount of money due, all cancellation and refund conditions, the name of the Service Provider and the name of the Grievance Officer shall be made known to the Customer once payment is made and plan document is issued along with invoice and agreement. The Service Provider shall not employ pre-ticked consent, hidden charges, false urgency, forced add-on or any other pattern that may be found in the Guidelines for Prevention and Regulation of Dark Patterns, 2023 to be a "dark pattern".

3.3 No Refund After Activation

3.3.1 This is the case insofar as the Service Provider transfers, remits or commits the respective amount to Partner Providers for the provision or facilitation of the Service, with the Customer giving its consent free of charge. As a result, the Customer cannot cancel, withdraw from, revoke or terminate the Service for the purpose of having the amount paid refunded, credited or reimbursed.

3.3.2 No right to a refund, credit, reversal or adjustment shall arise from the Customer's subsequent non-use of, or failure to continue to avail, an activated Service.

3.4 Non-excludable Rights Preserved

No provision in this Clause 3 shall have the effect of excluding, limiting or displacing any right, remedy or entitlement of the Customer which could not be excluded or restricted in accordance with Applicable Law, including in accordance with the Consumer Protection Act, 2019.

3.5 Customer Acknowledgement

The Customer hereby confirms that the receipt of the Customer's Electronic Signature or Digital Signature, or completion of the electronic acceptance mechanism set forth in Clause 4, shall constitute a confirmation that the Customer is satisfied with the information received and that the Customer may rely on the information in the same manner as a paper, mailed, or signed acceptance.

key features, price, validity, exclusions, Cooling-off Period and no-refund position after activation were explained to Customer in English / Hindi, the language opted by the Customer;

The acceptance is of this Customer's free and voluntary consent.

4. ELECTRONIC EXECUTION, DIGITAL SIGNATURE, WITNESSES AND EVIDENCE

4.1 Modes of Execution

4.1.1 The Parties agree that this Agreement, the Plan Document, the tax invoice and all consents and declarations recorded herein may be executed and delivered in either or both of the following ways, at the Customer's option and as the Service Provider offers at the time of purchase:

(a) Electronic / Digital Execution – by means of an Electronic Signature / Digital Signature, including (i) OTP-authenticated Click Wrap Acceptance sent to Customer's registered mobile number and/or registered e-mail address; (ii) Aadhaar-based e-Sign through a Certifying Authority / ESP registered with the Controller of Certifying Authorities; or (iii) Digital Signature Certificate (DSC) issued by a licensed Certifying Authority; or

(b) Physical Execution – in the form of a customer's handwritten signature on a printed counterpart and witness attestation in accordance with the provisions of Clause 4.5 below.

4.1.2 Any Electronic Signature or Digital Signature added to this Agreement in the manner specified in 4.1.1(a) shall be a valid, binding and enforceable execution of this Agreement in accordance with the provisions of the Information Technology Act, 2000 (in particular, those provisions relating to the legal recognition of electronic records and electronic contracts, as cited in the accompanying review) and have the same legal effect as if a handwritten signature had been added to a paper counterpart.

4.1.3 The Parties expressly waive any objection to the effectiveness of this Agreement on the basis that it is signed electronically or by a Digital Signature.

4.2 The Customer's Digital Signature Process is defined in this section.

This section outlines the Customer's Digital Signature Process.

4.2.1 In the event the Customer decides to enter into this Agreement through Aadhaar based e-Signature or a Digital Signature Certificate (DSC):

(a) Customer shall be redirected to empaneled ESP / Certifying Authority (CA) interface;

(b) Customer shall authenticate the transaction by logging in with the OTP received on the mobile number registered with the Unique Identification Authority of India, or by using any other form of authentication as may be allowed by law in the case of Aadhaar based e-Sign;

(c) if authentication is successful, the ESP / Certifying Authority shall affix to this Agreement a cryptographic signature to the hash of this Agreement and shall create a signed PDF with e-Sign / DSC panel.

(d) the Service Provider shall keep as the executed original of this Agreement the signed PDF, along with the signer certificate information and the ESP audit response.

4.2.2 Upon signing of the Agreement, a copy of the signed Agreement, the Plan Document and the tax invoice shall be sent to the Customer's registered e-mail and/or registered WhatsApp number within twenty-four (24) hours.

4.3 Audit Trail

The Service Provider shall maintain an audit trail in respect of every electronic or digital execution, comprising:

(a) the date and time of acceptance / signing;

(b) the IP address and/or device identifier from which the execution was made;

(c) the OTP / authentication log (masked as required by law);

(d) the version of the terms accepted;

(e) the ESP / Certifying Authority transaction reference, signer certificate serial number and validity period (where an e-Sign or DSC is used); and

(f) the payment reference or transaction ID.

4.4 Position on Witnesses for Electronically Executed Agreements

4.4.1 The Parties recognize and declare that:

(a) this Agreement is a commercial service contract and is not an instrument for the validity of which attestation of witnesses is required by any statute (illustratively a Will, a gift or a deed in relation to immovable property);

(b) a contract validly executed by means of Electronic Signature or Digital Signature shall not require any attestation by witnesses for it to be legally binding and of full force, save with respect to such instruments as are of negotiable instrument nature (other than a cheque), powers of attorney, trusts, wills and testamentary dispositions, or contracts for the sale or conveyance of immovable property or any interest therein, as expressly provided by the Information Technology Act, 2000.

(c) this Agreement is not of any such excluded category.

4.4.2 If the Customer signs this Agreement by Electronic Signature or Digital Signature, then the Customer shall not be required to sign this Agreement with witnesses, and the failure to witness the Customer's signature shall not render this Agreement invalid, inadmissible or unenforceable.

4.4.3 In the case of a transaction where the Service Provider, in its sole discretion, deems that the Agreement requires witness attestation despite electronic execution (such as a high value or bundled insurance transaction) witnesses may be used to attest the Agreement:

(a) with their own Aadhaar based e-Sign / DSC on the same signed PDF from the empanelled ESP / Certifying Authority; or

(b) by physically signing a printed counterpart to the electronically signed record to be scanned and added to the electronically signed record.

In both, the name, address, mobile number and e-mail address of the witness, and his/her DSC / e-Sign certificate details (if applicable) shall be noted.

4.5 The witness must be present during the execution.

If the Customer selects, under Clause 4.1.1(b), to execute this Agreement physically, the Customer shall sign in the execution block with his/her signature attested by two (2) witnesses who have reached the age of eighteen (18), each of whom is able to enter into a contract, and record his/her full name and address in the witness block. For a physically executed counterpart, physical witness attestation is required, but for an electronically or digitally executed counterpart, it is not required.

4.6 Welcome / Verification Call

Within a maximum of working Forty-eight (48) hours following the purchase (preferably by a staff or team not part of the sales team) the Service Provider shall make a recorded welcoming/verification call to the Customer to confirm the Customer's identity, plan purchased, price paid, Cooling-off Period, no-refund position after activation and Official Payment Channels. The making of such a call shall be a further confirmation of an electronically executed Agreement and shall be a part of the evidence file kept in accordance with Clause 14.5.

4.7 Evidentiary Value

The Parties agree that the signed PDF, the e-Sign / DSC audit response, the OTP authentication log and the sales/verification / service call recordings kept under the auspices of Clause 6.4 shall be considered admissible evidence in any proceeding under the Bharatiya Sakshya Adhinyam, 2023, and shall not be objected to solely because they are in electronic format, or because this Agreement lacks a handwritten signature or witness attestation.

4.8 Counterparts

This Agreement shall be executed in counterparts, electronic, digital or in physical form, each of which, when executed, constitutes an original, and all of which together shall constitute one instrument.

5. TERM AND TERMINATION

5.1 Term

This Agreement shall become effective on the Effective Date and shall remain in effect until it is terminated in accordance with the provisions of this Agreement. The validity period of any particular Service shall be as stated in the applicable Plan Document.

5.2 Termination by Service Provider

Upon written or electronic notification, the Service Provider reserves the right to suspend or terminate the Customer's access to any Service for any reason, if the Customer:

- (a) commits a material breach of this Agreement or Plan Document and, if such breach can be remedied, does not do so within a reasonable period of time as specified in such notice;
- (b) provides false, inaccurate or misleading information in connection with the Services;
- (c) uses the Services fraudulently, illegally, abusively or without permission;
- (d) Must be required by Applicable Law or competent governmental/regulatory authority for suspension or termination.

5.3 Discontinuation by Customer

The Customer may discontinue using a Service at any time. But such a cancellation does not in itself give the Customer any right to a refund or reversal in regard to an activated Service, subject to the provisions of Clauses 3.1 and 3.4.

5.4 Effect of Termination

Nothing in this Agreement shall terminate or expire affect any accrued rights, obligations and liabilities of the Parties. The clauses relating to no-refund after activation, data privacy, information security, confidentiality, limitation of liability, dispute resolution, governing law and any other clauses which by their nature are intended to survive shall survive termination or expiry.

5.5 Third-party Services

The availability, continuity and termination of a Service provided by a Partner Provider may also be subject to the terms and operational circumstances of the Partner Provider. The Service Provider shall, to the extent practicable, notify the Customer of any material change or discontinuance to the Service.

6. PERSONAL DATA, HEALTH DATA AND CONSENT

6.1 Notice

With this clause the customer consented with free will and allow service provider for collecting Personal Data. the Service Provider shall use all plan specific personal data strictly in accordance with the requirements of partner provider and shall not issue any septate notice. The customer has a right to withdraw this consent and such request shall be entertained only if coming in writing through identified channels i.e. registered email ID

In addition, the Service Provider's current Privacy Policy is available at www.restorehealthservices.in/privacy-policy (V1.0 Dated: 20/08/2026).

6.2 Specific Consents

6.2.1 The Customer may separately give or refuse consent, through /during Verification call (or equivalent affirmative action), for each of the following:

- (a) processing of Health Data for the purpose of providing the Service;
- (b) sharing of Health Data with the categories of Partner Providers named or described in the Plan Document; and
- (c) receiving promotional communications from the Service Provider or its authorized marketing partners.

6.2.2 Refusal of consent under sub-clause (c) above shall not affect the Customer's entitlement to the Service. Refusal under sub-clause (a) or (b) may prevent the delivery of Services that cannot lawfully or practically be provided without such Personal Data, and the Customer shall be so informed before completing the purchase.

6.3 Withdrawal and Rights

6.3.1 The Customer may, at any time, withdraw consent and request access to, correction, updating or erasure of Personal Data by writing to the Service Provider at helpline@restorehealthservices.in.

6.3.2 Withdrawal of consent shall not affect the lawfulness of the processing which took place prior to the withdrawal of consent nor processing ongoing on a basis other than consent. The requests will be treated in accordance with the time stipulated in Applicable Law.

6.4 Call Recording

All sales, verification and service calls between the Service Provider (and applicable Partner Providers) and the Customer may be recorded for quality assurance, training, evidence and dispute resolution purposes. The Customer shall be notified of such recording at the beginning of every Call.

6.5 Data Minimization

The Service Provider shall only obtain Personal Data as may be reasonably required to provide the Service and in keeping with Applicable Law. The Service Provider will not collect or store the complete Aadhaar number of the Customer (masked last 4 digits, if applicable), Customer's Card PIN, CVV, OTP, net-banking credentials.

6.6.1 Conventional Beneficiaries who are Minors

If a beneficiary of the Service is under eighteen (18) years of age, Personal Data of the minor shall be processed only with verifiable consent of the minor's parent or lawful guardian and no targeted advertising shall be directed at the minor.

6.7 Cross-border Transfers

Personal Data may not be transferred outside India, except in compliance with and in accordance with, and in compliance of, the restrictions by Applicable Law, and only subject to contractually binding restrictions by the recipient.

7. INFORMATION SECURITY, BREACH NOTIFICATION AND CONFIDENTIALITY

7.1 Service Provider shall establish and maintain reasonable security practices and procedures, based on the nature of the Personal Data it processes, such as role-based access control, encryption of Health Data at rest and in transit, regular vulnerability assessment, incident response plan, secure logging,

monitoring, etc., consistent with the SPDI Rules and, if applicable, the DPDP Act.

7.2 The Service Provider shall require each Partner Provider and each technology vendor with which it processes Personal Data to implement security safeguards equivalent to those implemented by the Service Provider under a written data-processing agreement, and to process Personal Data for the purpose(s) disclosed to the Customer.

7.3 If a Customer's personal data becomes breached for any reason, the Service Provider shall promptly:

- (a) notify the Customer to the effect that the violation has occurred, its probable consequences and what is being done;
- (b) provide a report to Indian Computer Emergency Response Team ("CERT-In") as per timelines as specified in the CERT-In Directions dated 28 April 2022; and
- (c) on coming into force of DPDP Act, make all the reports to the Data Protection Board of India and to the concerned data principals as per laws.

7.4 The Customer shall maintain the confidentiality of all login credentials, OTPs, e-Sign / DSC authentication credentials and access tokens used for accessing its account with the Service Provider and shall immediately notify the Service Provider in case of any suspected access / use by any third party.

The Service Provider shall use or disclose the Customer's Personal Data and other confidential information only:

- (a) for the provision or facilitation of the Services pursuant to the consent obtained under Clause 6;
- (b) in accordance with Applicable Law or in accordance with a competent authority under Applicable Law; or
- (c) Expressly with the Customer's consent.

For the purposes of clarity, the Service Provider agrees not to use the term "legitimate interests" as a basis for disclosure other than in relation to purposes which have been consented to or expressly permitted by Applicable Law.

The Customer shall keep confidential any information that the Customer acquires from the Service Provider that is identified as confidential or is, for any reason, confidential; and shall not disclose or misuse the same, except in accordance with the law.

8. OFFICIAL PAYMENT CHANNELS AND ANTI -IMPERSONATION

8.1 Official Payment Channels

8.1.1 All payments to the Service Provider shall be made only through one of the following Official Payment Channels:

- (a) the payment link or payment gateway generated in the name of "RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED";

8.1.2 Any payment made to any other person, personal UPI ID, personal bank account, mobile wallet, cryptocurrency address, or in cash to any individual, shall not be treated as payment made to the Service Provider. The Customer shall have no claim against the Service Provider in respect of any such payment.

8.2 Anti-impersonation Warnings

8.2.1 The Service Provider, its employees, Vendor, associates and authorized representatives shall never:

- (a) ask the Customer to share an OTP, UPI PIN, card CVV, card PIN, net-banking password, or e-Sign / DSC credentials;
- (b) ask the Customer to install any screen-sharing, remote-desktop or remote-access application (including but not limited to such as Any Desk, TeamViewer, Quick Support or similar);
- (c) ask the Customer to transfer money to a personal account as "processing fee", "verification amount", "refund gateway charge", "tax clearance" or the like; or

(d) promise the Customer any cashback, loan, insurance claim payout, government scheme benefits or job opportunity that is not expressly recorded in the Plan Document.

8.2.2 The Service Provider's only official communication channels are:

- (a) Website: www.restorehealthservices.in;
- (b) E-mail domain: issuance@restorehealthservices.in;
- (c) Customer care number: +919205456671 and +918448507406
- (d) WhatsApp Business number: +919205456671 and +918448507406

All communications, offers and demands from any other number, e-mail address, URL or handle are not from the Service Provider and should not be acted upon.

8.2.3 The Customer shall confirm any caller, agent, offer or communication by calling the Service Provider via any of the means listed in Clause 8.2.2.

8.2.4 The Service Provider shall promptly notify the relevant cyber-crime authorities of any case of impersonation, phishing and/or fraudulent use of the Company's name, brand, logo and/or communication channels of which it becomes aware, and publish a fraud-alert notice on its website and in the welcome notification to Customers.

8.3 Invoice and Record

The Service Provider will receive payment and issue a tax invoice and Plan Document in the Customer's name for each payment received. No oral representation, promise or benefit not contained in this Agreement or the Plan Document or the tax invoice shall be binding on the Service Provider. The Customer is asked to contact the Grievance Officer regarding any such verbal assurance given by any person.

The nature of services — not insurance.

9.1 Unless a Plan Document expressly states that a policy of insurance is bundled with the Service, the Services are health, wellness, discount,

assistance or membership services and are NOT a policy of insurance. They are not intended to provide any indemnity, cashless hospitalisation or reimbursement of medical costs and are not intended to be a replacement for a health insurance policy and should not be treated as such by the Customer.

9.2 Where a policy of insurance has been expressly linked with a Service:

- (a) shall contain the insurance policy issued by the insurance company referred to in the Plan Document in accordance with the insurance policy wording of the insurance company;
- (b) distribution shall be through the IRDAI registered intermediary whose name and IRDAI registration number is mentioned in the Plan Document; and

This Agreement to the extent it does not conflict with any free-look, claim, grievance and cancellation rights provided by the insurance policy will supplement those rights in the insurance policy.

9.3 The Service Provider is not making any representations, warranties or guarantee to the Customer or to any third party that any government scheme, subsidy, insurance claim or any third-party reimbursement will be available to the Customer simply by acquiring a Service.

10. HEALTHCARE, TELEMEDICINE AND EMERGENCIES

10.1 The Services are not emergency services. In the event of a medical emergency the Customer should dial 112 / 108 or run to the nearest hospital. This Agreement and the Services do not impose any responsibility on the Service Provider to respond to a medical emergency.

10.2 If teleconsultation is offered as part of a Service, then it shall only be provided by a registered medical practitioner whose name, qualification and registration number will be displayed to the Customer at the time of the teleconsultation, in accordance with the Telemedicine Practice Guidelines, 2020 and Applicable Law.

10.3 The consultation, diagnosis, prescription, treatment plan and medical advice offered by the registered medical practitioner is made in the exercise of his or her independent professional judgment. The Customer is responsible for taking such advice only after determining that it is suitable for him or her and, if required, obtaining second opinions.

10.4 The Service Provider is not a medical professional and cannot replace the relationship between the Customer and the treating professional.

11. REPRESENTATIONS AND WARRANTIES

11.1 The Customer confirms and agrees with the Service Provider that:

- (a) Customer is 18 years or older;
- (b) that the Customer has freely accepted to enter into this Agreement;
- (c) the information and documents supplied by Customer is accurate, truthful and complete;
- (d) payment is made from an account, card or wallet of the Customer or of a family member as defined in Clause 17.4;
- (e) The Customer has received no promise of any benefit, cash back, loan, insurance claim payout, government scheme or other consideration in addition to the Plan Document;
- (f) the Customer does not rely on any oral representation by an agent or employee which has not been written; and
- (g) In case the Customer signs this Agreement by Electronic Signature/ Digital Signature, the mobile number, e-mail address and Aadhaar (for e-Sign) provided for signing the signature is that of the Customer and the Customer has signed the same himself/herself.

11.2 The Service Provider warrants to the Customer that the Service(s) will be provided and/or made available in accordance with the Plan Document, this Agreement and Applicable Law.

12. INDEMNITY AND LIMITATION OF LIABILITY. 12. INDEMNITY AND LIMITATION OF LIABILITY.

12.1 Any losses, liabilities, claims, costs and expenses incurred by the Customer as a result of the Customer's fraud, material breach of this Agreement, wilful misconduct or unlawful act, including any false or misleading information provided by the Customer, shall be borne by the Customer.

12.2 To the extent that a Service is delivered by a Partner Provider, the Service Provider shall be held to no specific liability with respect to any act or omission, any clinical decision, diagnosis or treatment, medical advice, professional judgment or delay, deficiency, defect or failure of the Partner Provider, save as the Service Provider may be separately liable under applicable law or where the Service Provider independently caused or contributed to the loss.

12.3 The Service Provider shall not be liable for any indirect, incidental, special, exemplary, punitive or consequential loss, loss of profit, loss of opportunity or loss of anticipated benefit arising out of or in connection with the Services or this Agreement, except as provided by "Applicable Law.

12.4 Except where otherwise prohibited by law or statute or in the event of fraud, willful misconduct or an exception by law in relation to the limitation of liability, the total liability of the Service Provider under this Agreement for any Service or for any breach of this Agreement shall not exceed the amount of fees paid by the Customer to the Service Provider for the Service in question.

12.5 Nothing in this Agreement shall exclude or limit any statutory right or remedy of the Customer which may not be lawfully excluded or limited, such as were provided by the Consumer Protection Act, 2019.

13. INTELLECTUAL PROPERTY

13.1 All intellectual property rights in and to the Service Provider's websites, mobile applications, software, technology, systems, trademarks, brand names, logos, content, materials and other proprietary assets used or made available in connection with the Services shall remain vested in the Service Provider or its licensors.

13.2 The Customer is granted only a limited, non-exclusive, non-transferable and revocable right to access and use the Services and related materials for their intended purpose during the validity of the Service. Nothing in this Agreement shall be construed as transferring ownership of any intellectual property to the Customer.

14. GRIEVANCE REDRESSAL

14.1 The Service Provider hereby designates the following officer as its Grievance Officer:

Particulars	Details
E-mail	Helpline@restorehealthservices.in
Phone	+919205456671 +918448507406
Address	Office No. G-0005, A-1, Ground Floor, Sector 59, Noida, Gautam Buddha Nagar, Uttar Pradesh, 201301
Working hours	09:00 AM to 06:00 PM (Mon-Sat)

14.2 Every grievance received by the Grievance Officer shall be given a unique number and the reply shall be issued within forty-eight (48) working hours of receipt and shall be resolved within one month of the receipt, in compliance with the Consumer Protection (E-Commerce) Rules, 2020.

14.3 If the Customer does not agree with the solution offered by the Grievance Officer, the Customer is able to contact the Nodal Officer at [nodal@__] with regard to the matter. A grievance related to data protection in turn can be filed with the DPDP Board of India as and when the DPDP Act is operational, per law.

14.4 No provision of this Clause shall limit or be interpreted as limiting the Customer's ability to go to any consumer commission, court, police authority, cyber-crime authority, regulatory authority or other competent forum. The Parties, however, note that addressing matters of payment, delivery and refunds to the Grievance Officer is typically the most efficient and expeditious process for resolving the issues, including a request for reversal or adjustment.

14.5 The Service Provider shall maintain an evidence file for each Customer of records containing: KYC records; the signed PDF and tax audit response signed with e-Sign / DSC, and the electronic tax audit response trail provided under Clause 4; the Plan Document and tax invoice; evidence of welcome / verification call including recording; evidence of delivery by WhatsApp / e-mail; evidence of the service being used (log of use); and the payment reference. Such a file shall be prepared, as necessary, on the basis of any grievance, notice by a consumer forum or notice by a cyber-crime authority.

15. DISPUTE RESOLUTION, GOVERNING LAW AND JURISDICTION

15.1 Before taking any other remedy, the Parties shall make every effort in good faith to settle any dispute or grievance in accordance with the procedure outlined in Clause 14.

15.2 The laws of India shall govern and be construed against this Agreement.

15.3 All proceedings under this Agreement, or arising from it or in connection with it, shall be under the exclusive jurisdiction of the courts at Noida in Gautam Buddha Nagar, Uttar Pradesh, to which the Customer may resort to any right, exercise any jurisdiction or powers under this Agreement.

15.4 No provision of this Agreement shall be construed to take away or detract from such jurisdiction, right or remedy as is not provided for in Applicable Law or which cannot be lawfully taken away or abridged or prevented from being exercised by the Customer in a complaint before any authority.

16. FORCE MAJEURE

16.1 In the event that any Force Majeure Event occurs which causes any failure or delay in the performance of any of its obligations (other than any obligation to pay money which is already due) then neither Party shall be liable for such failure or delay to the extent that such failure or delay is caused by such Force Majeure Event whereupon the affected Party had implemented and maintained reasonable security safeguards and business-continuity measures.

16.2 As soon as reasonably practicable, a Party to a Force Majeure Event shall resume performance, notify the other Party within fifteen (15) days of the

occurrence, and use commercially reasonable efforts to mitigate the impact of the Force Majeure Event.

16.3 For the purposes of this provision, an event which, in the absence of maintenance of reasonable measures of information security, would have been prevented shall not constitute a Force Majeure Event in so far as it gives rise to a data breach or unlawful disclosure of Personal Data.

16.4 If a Force Majeure Event exists for a period of ninety (90) days or more, either Party may terminate this Agreement upon giving written notice, without prejudice to the rights and obligations of either Party that may have accrued.

17. GENERAL

17.1 Notices

The Customer can receive the notices via the Customer's registered mobile number, e-mail address, WhatsApp Business number or account with the Service Provider. All Notices to the Service Provider shall be sent to the registered office address provided above or helpline@restorehealthservices.in addressed to the Grievance Officer / Nodal Officer.

17.2 This updates the contact information. This updates Contact Details.

The Customer shall notify the Service Provider of any change in the Customer's contact information, such as Customer's e-mail address and mobile number for Electronic Signature / Digital Signature authentication, promptly.

17.3 Assignment

The Customer shall not sub-let, assign, or transfer any rights and/or obligations under this Agreement without the written consent of the Service Provider. The Service Provider reserves the right to assign or transfer this Agreement to an affiliate of the Service Provider, a successor or a business that acquires all or substantially all of the relevant business, in accordance with the provisions of Applicable Law, without adversely affecting the rights of the Customer accrued prior to the assignment or transfer.

17.4 Payer Declaration

The Customer hereby declares that the payment for the Service is being made from an account/card belonging to:

- ☐ the Customer; or
- ☐ a family member, namely {Name} {Relationship}.

The Service Provider shall not entertain a chargeback or dispute raised by a third party who is not the Customer.

17.5 Severability

In the event any provision of this Agreement is in anyway deemed invalid or unenforceable, such provision shall, to the extent legally permitted, be modified to the least extent necessary to make it valid and to make the remaining provisions effective.

17.6 Waiver

No failure or delay by a Party in the exercise of any of the rights shall constitute a waiver of any of those rights, as well as preclude exercise of the other rights to the extent of the failure or delay.

17.7 Amendments

This Agreement shall not be amended unless the amendment is in writing or by electronic means that can be confirmed by the Customer's affirmative response. Any amendment which might be detrimental to a Service which the Customer has already purchased shall be effective only upon express approval of the Customer, except where the amendment is required by Applicable Law.

17.8 Entire Agreement

This Agreement, along with the applicable Plan Document, tax invoice, Privacy Policy and the applicable terms of a Service is the complete agreement between the Parties in regard to the Services and replaces all previous oral or written agreement.

17.9 No Partnership

The Parties and the Service Provider and any Partner Provider shall not create a partnership, agency, joint venture or employer-employee relationship with respect to anything contained in this Agreement.

18. CUSTOMER DECLARATIONS

The Customer hereby declares and confirms that:

18.1 the Customer is eighteen (18) years of age or above and is competent to contract;

18.2 the Customer has read and understood, or had explained to the Customer in the language chosen by the Customer, the key features, price, validity, exclusions, Cooling-off Period, no-refund-after-activation position, and data-privacy notice;

18.3 the Customer has received the Plan Document and the tax invoice;

18.4 payment is being made through an Official Payment Channel of the Service Provider and not to any personal account or personal UPI ID;

18.5 the Customer has not been promised any benefit, cashback, loan, insurance claim payout, government scheme or other consideration outside the Plan Document and its validity, and understands that no such oral promise shall bind the Service Provider;

18.6 the Customer has been informed that in a medical emergency; the Customer should dial 112 / 108 or proceed to the nearest hospital;

18.7 the Customer's consents recorded under Clause 6 (and the accompanying tick-box screen) reflect the Customer's informed choices; and

18.8 the Customer understands and agrees that this Agreement may be executed by Electronic Signature or Digital Signature (including OTP-based click-wrap, Aadhaar-based e-Sign or DSC), that such execution is legally valid and binding, and that witness attestation is not required for a customer who executes this Agreement electronically pursuant to Clause 4.4.

IN WITNESS WHEREOF

The Parties have accepted and agreed to the terms of this Agreement on the Effective Date first hereinabove written.

PART A — DIGITAL / ELECTRONIC EXECUTION

(To be used where the Customer executes this Agreement by Aadhaar-based e-Sign, DSC or OTP-authenticated click-wrap acceptance. Witness attestation is not required — see Clause 4.4.)

For and on behalf of RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED

Digitally signed by: Shashank Kumar Name: Shashank Kumar Designation: Director DSC serial no. : WD08036752 *Certifying Authority / ESP: 4159* Date and time of signing (IST): {Date} at {Time}: {AM/PM} Authorised Signatory pursuant to Board Resolution dated 20/08/2026

Signed electronically by the CUSTOMER

Full name: {CustomerName} Mobile: {CustomerPhone} *E-mail:* {CustomerMail} Mode of electronic execution :

Aadhaar-based e-Sign (through empanelled ESP)

Payment reference / UTR: {UTR} Plan name and number: {PlanName} {PlanNumber} Language of explanation: {Language} *Agent name :* {AgentName} Welcome/verification call completed on: {CallDate} at {CallTime} {AM/PM}

PART B — PHYSICAL EXECUTION (ALTERNATIVE)

(To be used only where the Customer elects to execute a printed counterpart in physical form under Clause 4.1.1(b). In that event, two witnesses shall attest as provided in Clause 4.5.)

For and on behalf of RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED

Signature:

Name: Shashank Kumar Designation: Director Authorised Signatory pursuant to Board Resolution dated 20/08/2026 Place: Noida Date: {CurrentDate}

SIGNED AND DELIVERED by the CUSTOMER

Signature:

Name: {CustomerName}

Mobile: {CustomerPhone}

E-mail: {CustomerMail}

Place: {CustomerPlace}

Date: {CustomerDate}

WITNESSES (*applicable only to Part B — physical execution*)

Witness 1	Witness 2
Signature: _____	Signature: _____
Name: _____	Name: _____
Address: _____	Address: _____
Mobile: _____	Mobile: _____
Date: __/__/__	Date: __/__/__

Where the Service Provider requires witness attestation notwithstanding electronic execution under Clause 4.4.3, the witnesses may affix their own Aadhaar-based e-Sign / DSC to the signed PDF through the empanelled ESP / Certifying Authority, in which case the DSC / e-Sign certificate details of each witness shall be recorded above in place of a handwritten signature.

SCHEDULE 1 – KEY FACTS AND TRANSACTION RECORD

To be completed for each purchase and sent to the Customer with the Plan Document and tax invoice.

PART A – CUSTOMER DETAILS	
Name of Customer	{CustomerName}
Age / date of birth	{CustomerDateOfBirth}
Residential address	{FullAddressCustomer}
Mobile number	{CustomerPhone}
Email address	{CustomerMail}
Identity document (type and last 4 digits only)	{CustomerAadharLastFour}
Payer, if not the Customer (name and relationship)	{PayerName} {Relationship}
PART B – KEY FACTS STATEMENT	
Plan name and number	{PlanName} {PlanNumber}
Services and benefits (summary)	Mentioned in the Invoice
Validity period	From {IssueDate} to {ValidityDate}
Fees (excluding taxes)	₹ {FeeswithoutTax}
Taxes	₹ {Tax}
Total amount payable	₹ {TotalPayable}
Partner Providers (category / name)	CareHealth and HealthAssure
Cooling-off Period	7 (seven)days from the date of issue of policy
Refund timeline	7 (seven)days from the date of issue of policy

PART C – TRANSACTION AND VERIFICATION RECORD		
Payment Reference / UTR, date and time	{UTR} {PaymentDate} {PaymentTime}	
Mode of payment	{PaymentMode}	
Payee (must match Schedule 2)	{Payee}	
Chosen Language of explanation	{Language}	
Authorized Representative (name and employee/agent code)	{AgentName}	
Mode of acceptance	OTP, Video & Audio KYC	
Acceptance date and time; OTP verification log reference	{AcceptanceDate} {AcceptanceTime}	
Privacy Policy version and date	Version 1.0 Dated 20/08/2026	
Documents sent to Customer (date, time, email/WhatsApp)	{DocumentSent} {SentDate} {SentTime} {TypeofSendingPlatform}	
Welcome completed	Call	On {Date} at {Time} by {VerifierName}

SCHEDULE 2 – OFFICIAL CHANNELS, PAYMENT DETAILS AND FRAUD ALERT

The Service Provider communicates and accepts payment only through the channels below.

OFFICIAL CHANNELS	
Website	www.restorehealthservices.in
Email domain	Issuance@restorehealthservices.in
Customer care number	+919205456671 +918448507406
WhatsApp Business number	+919205456671 +918448507406
Payment link / gateway	Payment Done via Company secure channel (in the name of Restore Health Services (OPC) Private Limited)
Privacy Policy address	Noida
Office premises for verification visit (Clause 4.8)	Office No. G-0005, A-1, Ground Floor, Sector 59, Noida, Gautam Buddha Nagar, Uttar Pradesh – 201301. Business hours: 09:00 AM to 06:00 PM
OFFICIAL PAYMENT ACCOUNTS (in the name of the Service Provider only)	
Account name	RESTORE HEALTH SERVICES (OPC) PRIVATE LIMITED
GRIEVANCE REDRESSAL	
Email	Helpline@restorehealthservices.in Issuance@restorehealthservices.in
Postal address and working hours	G-0005, A-1, Ground Floor, Sector 59, Noida, Gautam Buddha Nagar, Uttar Pradesh, 201301 Working Hours : 09:00 AM to 06:00 PM (Mon-Sat)

Nodal Officer (escalation)	Helpline@restorehealthservices.in
Privacy / data-protection email	Helpline@restorehealthservices.in
Company identifiers	CIN: U86909UW2026OPC257013 GSTIN: 09AAQCR1885F1ZU

FRAUD ALERT

- Pay only to the account, UPI ID or payment link listed above. Never pay to a personal account or UPI ID, or in cash.
- We will never ask for your UPI PIN, card PIN, CVV, net-banking password or any OTP other than the acceptance OTP you enter yourself, and will never ask you to install a screen-sharing app.
- If you are contacted by a caller or agent you cannot verify, call our customer care number above before making any payment.
- If you think you have been cheated by an impersonator, call the National Cyber Crime Helpline 1930 or report at cybercrime.gov.in immediately, and inform your bank and us.

— End of Agreement —